

26STCV01151 26STCV01151

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-27

Motion: PLAINTIFF'S REQUEST FOR DEFAULT JUDGMENT

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Case Number: 26STCV01151 Hearing Date: August 27, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

ADAMS

KABOB HOUSE INC.,

Plaintiff,

vs.

EL CAMINO ADHC, INC.; and Does 1 to 50, inclusive,

Defendants.

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CASE

NO.: 26STCV01151

[TENTATIVE] ORDER RE: PLAINTIFF'S
REQUEST FOR DEFAULT JUDGMENT

Dept. 733

8:30 a.m.

August 27, 2026

I.

INTRODUCTION

This case arises
from an alleged breach of a contract for catering services.

On

January 13, 2026, Plaintiff Adams Kabob House Inc. ("Plaintiff") filed a
complaint against Defendant El Camino ADHC, Inc. ("Defendant"), alleging causes
of action for (1) Breach of Contract and (2) Common Counts.

On

March 6, 2026, the Court Clerk entered default against Defendant.

On

July 13, 2026, Plaintiff filed a Request for Entry of Default Judgment.

II.

LEGAL STANDARD

Code of Civil

Procedure section 585 permits entry of a judgment after a Defendant has failed to timely answer after being properly served. A party seeking judgment on the default by the Court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a proposed form of judgment; (6) a dismissal of all parties against whom judgment is not sought; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court Rule 3.1800.)

III.

DISCUSSION

SUBMITTED: CRC

3.1800

1.

Use

of JC Form CIV-100 Yes

2.

Dismissal or judgment of non-parties to the judgment No

3.

Declaration

of non-military status for each defendant Yes

4.

Summary

of the case Yes

5.

585(d)

declarations/admissible evidence in support Yes

6.

Exhibits (as necessary) Yes

7.

Interest computation (as necessary) N/A

8.

Cost memorandum Yes

9.

Request for attorney fees (Local Rule 3.214) N/A

Damages Summary:

Damages

\$ 79,819.00

Interest

\$ 0

Attorneys' fees

\$ 0

Costs

\$ 675.40

TOTAL

\$ 80,494.40

Other relief requested

Plaintiff seeks a default judgment in the amount of \$80,494.40,
which includes \$79,819.00 in damages and \$675.40 in costs.

Plaintiff

has provided a cost memorandum as to the incurred costs, which includes \$435.00 for Clerk's filing fees and \$240.40 for Process server's fees.

For any damages

claimed, "Plaintiffs

in a default judgment proceeding must prove they are entitled to the damages

claimed.' [Citation]." (Kim v. Westmoore Partners, Inc.

(2011) 201 Cal.App.4th 267, 288.) "[T]he plaintiff must affirmatively

establish his entitlement to the specific judgment requested." (Id. at

p. 287.)

Plaintiff declares that Plaintiff entered

into an agreement with Defendant for the purchase of catering

services for breakfast and lunch from Plaintiff's restaurant for Defendant's

adult day health care for five days a week, Monday through Friday. (Bablumyan

Decl., ¶ 3.) The agreement called for payment for the meals at the end of

every month upon presentation of an invoice from Plaintiff. (Ibid.)

In mid-2025,

Defendant became past due on its account. In an effort to continue the working

relationship, Plaintiff allowed Defendant to enter into a payment plan, to

which it also did not adhere. Defendant failed to pay for any portion of the

meals delivered to it from July 1, 2025 to November 12, 2025. (Id. ¶ 4.)

Due to Defendant's failure to pay, Plaintiff eventually stopped delivering

meals to it. At the time that Plaintiff stopping delivering meals to Defendant,

the past due amount totaled \$105,279.00. (Id. ¶ 5.)

While Defendant

made a partial payment after Plaintiff sent a demand, there remains a total of

\$79,819.00 outstanding. (Id. ¶¶ 6-7, Ex. B [past due invoices].)

Plaintiff has otherwise provided the necessary documents per California

Rules of Court Rule 3.1800(A), including a proposed form of judgment and

summary of the case, and properly authenticated all submitted

exhibits.

However, Plaintiff has not filed a dismissal of

all parties against whom judgment is not sought. Plaintiff has not dismissed

Does 1 to 50, inclusive.

IV.

CONCLUSION

Plaintiff's

Request for Default Judgment is GRANTED in the amount of \$80,494.40, contingent on Plaintiff promptly dismissing Does 1 to 50, inclusive.

Dated this 27th
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court